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REVIVED DECLARATION OF COVENANTS AND
RESTRICTIONS FOR BOCA LAKE

BOCA LAKE HOMEOWNERS ASSOCIATION, INC.

A Florida Not for Profit Corporation

Approved by the Florida Department of Economic Opportunity June 3, 2014

**REVIVED DECLARATION OF COVENANTS AND
RESTRICTIONS FOR BOCA LAKE**

The real property hereinafter described shall be held, transferred, sold, conveyed and occupied subject to the covenants, restrictions, easements, charges and liens (sometimes hereinafter referred to as "Covenants and Restrictions") hereinafter set forth.

ARTICLE I

DEFINITIONS

The following words, when used in this Declaration (unless the context shall prohibit), shall have the following meanings:

A. "Boca ~~Terra~~ Association" shall mean and refer to BOCA TIERRA HOMEOWNERS ASSOCIATION, INC., a Florida not for profit corporation. "Boca Lake Association" or "Association" shall mean BOCA LAKE HOMEOWNERS ASSOCIATION, INC., a Florida not for profit corporation. This is the Declaration of Covenants and Restrictions to which the Articles of Incorporation of the Association (the "Articles"), and By-Laws of the Association (the "By-Laws"), which are attached hereto and made a part hereof, as **Exhibits "A" and "B"** respectively.

B. "Property" shall mean and refer to all such existing properties and additions thereto as are subject to this Declaration or any supplemental Declaration under the provisions of Article II hereof, and shall include the real property described in said Article II.

C. "Common Area" shall mean and refer to all existing properties and additions thereto which are subject to this Declaration or any supplemental Declaration and which are for the common use and enjoyment of the members of the Association. Specifically included are all lakes.

D. "Developer" shall mean and refer to HERMAN CORN, AS TRUSTEE, and his successors or assigns, if any such successor or assign acquires any undeveloped portion of Boca Tierra from the Developer for the purpose of development and is designated as such by HERMAN CORN, AS TRUSTEE.

E. "Lot" or "Parcel" shall mean and refer to any lot or other parcel in Boca Lake, together with any and all improvements thereon, platted in the Public Records of Palm Beach County, Florida, on which a residential structure could be constructed, whether or not one has been constructed.

F. "Owner" or "Member" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot which is a part of the Property.

G. "Plat" shall mean and refer to that certain Plat recorded in Plat Book 38, Page 39 of the Public Records of Palm Beach County, Florida, as amended by that certain Plat recorded at Book 50, Page 60 of the Public Records of Palm Beach County, Florida which re-subdivided a portion of Block 16, said plat known as "Resubdivision of Portion of Block 16, Boca Tierra 2nd Section."

H. "1979 Declaration" shall mean and refer to the Declaration of Covenants and Restrictions for Boca Tierra dated January 19, 1979 and recorded in the public records of Palm Beach County, Florida on January 22, 1979 at Official Record Book 2995, Page 1613, et. seq.

I. "1998 Amended Declaration" shall mean and refer to the Amended Declaration of Covenants and Restrictions for Boca Lake and Boca Tierra dated January 22, 1998 recorded in the public records of Palm Beach County, Florida on January 30, 1998 in Official Record Book 10204, Page 610, et. seq.

ARTICLE II

PROPERTY SUBJECT TO THIS DECLARATION:

ADDITIONS THERETO, DELETIONS THEREFROM

Section 1. Legal Description. The real property which is and shall be held, transferred, sold, conveyed and occupied subject to this Declaration is located in Palm Beach County, Florida, and comprises all the parcels, platted or unplatted, within or upon the Property, legally described as:

ALL of BOCA TIERRA 2nd SECTION, according to the Plat thereof as recorded in Plat Book 38, at Page 39 (and as amended in Plat Book 50, Page 60) of the Public Records of the Palm Beach County, Florida, as further described on Exhibit A of the Supplemental Declaration of Covenants and Restrictions for Boca Tierra, recorded in Official Records Book 3132 at Page 854, et seq., which supplements the Declaration of Covenants and Restrictions, dated January 19, 1979, recorded on January 22, 1979 in the Official Records at Book 2995, Page 1613, et seq., of the Public Records of Palm Beach County, Florida.

Section 2. Parcels Subject to the Revived Declaration. Each parcel (Lot) that is subject to the governing documents of Boca Lake Association, including this Revived Declaration, as well as the name or names of the parcel owner or owners or the person(s) whose name the parcel is assessed on the last completed tax assessment roll of Palm Beach County at the time when this proposed revived declaration was submitted for approval to the parcel owners is attached hereto and made a part hereof as **Exhibit "C."**

ARTICLE III

PROPERTY RIGHTS

Section 1. Title to Common Area. Title to the Common Area indicated in Boca Tierra 1st Section was retained by Boca Tierra Association, pursuant to the 1998 Amended Declaration. Title to the Common Area indicated in Boca Tierra 2nd Section was transferred to Boca Lake

Association by the 1998 Amended Declaration. By execution of the 1998 Amended Declaration, Boca Tierra Association quit claims its interest in the Common Area, including that lake bearing Palm Beach County property control number 06424710050000010. The conveyance of the Common Property referenced in the 1998 Amended Declaration was conditioned upon the continued validity of the 1998 Amended Declaration, which provided for the operation of Section 1 and Section 2 by different entities. In the event it was determined and a final order was entered in any judicial proceeding, where Boca Tierra Association and Boca Lake Association, were parties, that the amendments of any of the governing documents described in the 1998 Amended Declaration or in the certificate of amendment of the 1998 Amended Declaration, were invalid or insufficient to authorize the operation of the property subject to the 1998 Amended Declaration as contemplated, the Common Property conveyed to Boca Lake Association was to revert to the Boca Tierra Association.

Section 2. Owners' Easements of Enjoyment in Common Area. Every Owner shall have a right and easement of enjoyment in and to the Common Area owned by either the Boca Tierra Association or the Boca Lake Association, which shall be appurtenant to and shall pass with the title to every Lot, subject to the following:

- A. The right of the Associations to take such steps as are reasonably necessary to protect the above described Properties against foreclosure;
- B. The right of each Association to adopt rules and regulations which govern the use and enjoyment of its Common Area by the Owner, his family, his guests, tenants and invitees, as well as the suspension of such use;
- C. Any Plat of all or any part of the Property Common Area;

D. All provisions of this Declaration or the Articles of Incorporation and By Laws of the Association, as they exist or as amended;

E. That Agreement, dated December 6, 1977, among Herman Corn, as Trustee, Boca Tierra Homeowners Association, Inc. and the City of Boca Raton.

Section 3. Other Easements and Agreements.

A. The appearance of the access, utility, drainage easements and swale areas of each Lot shall be continuously maintained by the Owner of said lot.

B. The easement rights of the Boca Tierra Association and the City of Boca Raton, Florida, are recited in any subsequent map of the Property or are attached thereto.

C. The access and non-access easements shall be maintained in that condition which was required for plat approval of the Property. No encroachment shall be permitted within said access easements which obstruct the movement of the public safety or public emergency vehicles. No encroachment or personal property or other interference with maintenance by the Association shall be placed upon the non-access easements by an Owner.

D. The Association shall maintain and replace as necessary perimeter landscaping adjacent to St. Andrews Boulevard in accordance with the landscape covenants of record. Boca Tierra Association and Boca Lake Association are each responsible for that portion of the referenced property adjacent to each Association's common property.

E. Additional obligations of the Associations are recited in the following additional Agreements:

1. That Agreement and Assignment of Refund dated November 10, 1978, between Boca Tierra Homeowners Association, Inc., and Herman Corn, as Trustee.

2. That Agreement dated October 25, 1978, between Boca Tierra Homeowners Association, Inc., and Florida Power & Light Company. In the event that Boca Tierra Association is obligated to pay any sums pursuant to these agreements or other agreements between Boca Tierra Association and third parties that serve or apply to both Boca Tierra Association and Boca Lake Association, then Boca Lake Association shall be liable to Boca Tierra Association for 38% of the total amount due the third party.

Section 4. Right of Entry. The Association, through its duly authorized employees and contractors, shall have the right – after reasonable notice to the Owner – to enter any unimproved portion of a Lot within the Property governed by the Association at any reasonable hour of the day to perform such exterior maintenance as is provided herein upon the unimproved portion of a Lot and the exterior of the improved portion thereof.

ARTICLE IV

MEMBERSHIP AND VOTING RIGHTS IN THE ASSOCIATION

Section 1. Membership. Every person or entity who or which is a record fee simple Owner of a Lot which is included in property subject to this Declaration in Article II is a member of Boca Lake Association. Membership shall be appurtenant to, and may not be separated from, ownership of any Lot which is subject to assessment.

Section 2. Classes and Voting. The Association shall have a single class of membership which shall have such voting rights as are set forth in the Articles of the Association.

ARTICLE V

COVENANTS FOR MAINTENANCE ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligation for Assessments. Each Owner of any Lot (by acceptance of a Deed), which shall include any purchaser at a judicial sale, shall be deemed to covenant and agree to pay to the Association any annual assessments or charges; and each Owner of any Lot by such acceptance shall be deemed to covenant and agree to pay to the Association any special assessments for capital improvements or major repair, such assessments to be fixed, established and collected from time to time as hereinafter provided. All such assessments, together with interest thereon from the due date at the rate of eighteen (18%) percent per annum and costs of collection thereof (including reasonable attorneys' fees) shall be a charge on the land and shall be a continuing lien upon the Lot(s) against which each assessment is made and shall also be the personal obligation of the Owner. No Owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the Common Area or by abandonment. By acceptance of a Deed, each Owner shall have acknowledged the creation of a contractual lien for the assessments prior to the establishment of any homestead exemption from foreclosure and forced sale in the event of non-payment of the assessments.

Section 2. Purpose of Assessment. The annual and special assessments levied by the Association shall be used exclusively for the purpose of promoting the recreation, health, safety

and welfare of its members and in particular for the improvements and maintenance of the Common Area, or the Forty (40) foot Buffers, Planters and Non-Access Easements and the Fourteen (14) foot Access Easement described in the Plat or any part of the Property, or any easement in favor of the Association or Boca Tierra Association, as the case may be, pursuant to Article III of this Declaration, or for compliance with the Agreements described in Article III, Section 2E, including, but not limited to the cost of taxes, insurance, labor, equipment, materials, management, maintenance, and other supervision thereof, as well as for all other purposes which are permissible activities of, and undertaken by, the Association. Assessments shall also be used to maintain the median landscaping and curbing as it pertains to city streets. The Association shall purchase a policy or policies of insurance insuring the City of Boca Raton against liability for personal injury or property damage arising by virtue of any vehicle(s) or collision with, upon or against the median signs and/or landscaping.

The Association may include in its annual assessment or may specially assess upon the affirmative vote of a majority of directors at a meeting of the Board of Directors, if necessary, to provide bulk cable television, radio, satellite and other electronic communication and information services for all homes in the Boca Lake community. Non-use of such services shall not entitle a Lot Owner to avoid the obligation for the portion of the assessment (or special assessment) attributable to such services. The Association shall have an easement to access each home in the Boca Lake community to install and maintain necessary equipment and wiring associated with such services. In the event a Lot Owner interferes with the installation or maintenance of such wiring or equipment and causes the service providers to alter their installation, maintenance or service schedule causing the Association to incur additional expense to complete the work, the Lot Owner causing such interference shall indemnify the Association

for that additional expense which shall be a special assessment against the Lot collectable in the same manner as other unpaid assessments levied by the Association as provided in this Declaration.

Section 3. Maximum Annual Assessments. Except as hereinafter provided, the annual assessment, excluding any special assessment for capital improvement or major repairs, shall in no event exceed Six Hundred (\$600.00) Dollars per Lot per annum. The Board of Directors of the Association (the "Board") shall fix the assessments, which shall be in amounts determined in accordance with the projected financial needs of the Association, including an initial assessment to be paid at closing by each Owner, as to which the decision of the Board shall be dispositive. By the vote of two-thirds (2/3) of the members of the Board the maximum amount of the assessments may be varied from the amount hereinabove set forth.

Section 4. Uniform Rate of Assessment. All regular and special assessments shall be at a uniform rate for each platted Lot. Notwithstanding the foregoing, in the event a Board reasonably determines in good faith that the cause of a Special Assessment shall not be borne equally by all of the Lots, the Board may assess a Special Assessment upon certain but not all of the Lots, or may assess unequal shares of a Special Assessment upon the Lots.

Section 5. Special Assessment for Capital Improvements and Major Repairs. In addition to any annual assessment, the Association may levy in any assessment year a special assessment, applicable to that year only, for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction or unexpected repair or replacement of a capital improvement as approved by the Board, including the necessary fixtures and personal property related thereto, provided that any such assessment shall have the assent of two-thirds (2/3) of the

members of the Association who are voting in person or by proxy at a meeting duly called for that purpose, written notice of which shall be sent to all members of the Association at least thirty (30) days in advance and shall set forth the purpose of the meeting.

Section 6. Date of Commencement of Annual Assessment: Due Date. The assessments for which provision is herein made shall commence on the date or dates (which shall be the first day of a month) fixed by the Board to be the date of commencement. The due date of any assessment shall be fixed in the resolution authorizing such and any such assessment shall be payable in advance in quarterly, semi-annual or annual installments, as determined by the Board.

Section 7. Duties of the Board of Directors. The Board shall fix the date of commencement of the assessment period and the amount of assessments, at least thirty (30) days in advance of such date or period and shall, at that time, prepare a roster of the Lots and assessments applicable thereto which shall be kept at a place designated by the Board and shall be open to inspection by any of the Members. Written notice of the assessment shall be sent to every Member subject thereto not later than seven (7) days after fixing the date of commencement thereof.

The Association shall, upon demand at any time, furnish to any of the Members liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said assessment has been paid. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

Section 8. Effect of Non-Payment of Assessment: the Lien, the Personal Obligation, Remedies of the Association. If any assessment is not paid on the date when due, such assessment shall then become delinquent and shall, together with interest thereon and the cost of

collection thereof, become a continuing lien on the Lot(s) against which such assessment is made that shall bind such Lot(s) in the hands of the Owner(s) against whom the assessment is levied.

If the assessment is not paid within thirty (30) days after the delinquency date, which shall be set by the Board, the assessment shall bear interest from the date of delinquency at the maximum legal rate per annum, and the Association may, at any time thereafter, bring an action to foreclose the lien against the Lot(s) in like manner as a foreclosure of a mortgage on real property, and/or a suit on the personal obligation against the Owner(s), and there shall be added to the amount of such assessment the cost of collection, including preparing the filing and complaint in such action (including reasonable attorneys' fees). In the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and reasonable attorneys' fees to be fixed by the Court, together with the costs of the action. The lien shall secure all assessments, interest, costs and attorneys' fees due upon its recording as well as all such sums that came due thereafter up to the date of the day of a judgment of foreclosure.

Section 9. Subordination to Lien of Mortgages. The lien of the assessments for which provision is herein made, as well as any other Article of this Declaration, shall be subordinate to the lien of any first mortgage to a bank, life insurance company, Federal or State savings and loan association, or real estate investment trust. Such subordination shall not apply to assessments which become due and payable subsequent to a sale or transfer of such Lot pursuant to a decree of foreclosure, and in any other proceeding in lieu of foreclosure of such mortgage. No sale or transfer shall relieve any Lot from liability for any assessments thereafter becoming due, nor from the lien of any such subsequent assessment. The written opinion of the Association that the lien is subordinate to a mortgage shall be dispositive of any question of subordination. Any Owner acquiring title to a lot shall become liable for unpaid assessments that

came due prior to taking title except Owners which are a bank, life insurance company, Federal or State savings and loan association or real estate investment trust that acquired title through foreclosure of its own first mortgage.

Section 10. Exempt Property. The Board shall have the right to exempt any of the Property subject to this Declaration from the assessments, charges and liens created herein, provided that such part of the Property exempted is used (and as long as it is used) for any of the following purposes:

- A. Any easement or other interest therein dedicated and accepted by the local public authority and devoted to public use;
- B. All Common Area as defined in Article I hereof;
- C. Any of the Property exempted from ad valorem taxation by the Laws of the State of Florida, to the extent agreed to by the Association.

Notwithstanding any provisions herein, no Lot (or any part thereof), land or improvements devoted to dwelling or related use shall be exempt from said assessments, charges or liens.

ARTICLE VI

EXTERIOR MAINTENANCE ASSESSMENT

Section 1. Exterior Maintenance. In addition to maintenance upon the Common Area, the Association may provide maintenance upon any Member's Lot requiring same, when necessary in the opinion of the Board, to preserve the beauty, quality and value of the

neighborhood, including painting, repairing and/or replacement, of gutters, downspouts, exterior building and roof surfaces, and yard cleanup and/or maintenance.

Section 2. Assessment of Costs. The cost of such maintenance shall be assessed against the Lot or Lots upon which such maintenance is performed or, in the opinion of the Board, benefitting from same, the assessment shall be apportioned among the Lots involved in the manner determined to be appropriate by the Board. If no allocation is made, the assessment shall be uniformly assessed against all of the Lots in the affected area. The exterior maintenance assessments shall not be considered a part of the annual or special assessments. Any exterior maintenance shall be a lien on the Lot and the personal obligation of the Owner and shall become due and payable in all respects, together with interest and fees for the cost of collection, as provided for other assessments of the Association, and shall be subordinate to mortgage liens to the extent provided by Section 9 of Article V hereinabove.

By acceptance of a Deed, each Owner of any Lot shall hereafter be deemed to covenant and agree to pay to the Association the assessments described herein, shall have acknowledged the creation of a contractual lien for the assessment prior to the establishment of any homestead exemption from foreclosure and forced sale, and shall have waived said exemption from foreclosure and forced sale in the assessment.

Section 3. Access at Reasonable Hours. For the purpose of performing the maintenance authorized by this Article, the Association, through its duly authorized agents or employees, shall have the right, after reasonable notice to the Member, to enter upon any Lot or the exterior of any improvements thereon at reasonable hours on any day except Saturday or Sunday.

ARTICLE VII

ARCHITECTURAL CONTROL

Section 1. Necessity or Architectural Review and Approval. No improvement or structure of any kind, including, without limitation, any building, fence, wall, swimming pool, tennis court, permanent bar-b-que pit, screen enclosure, sewer, drain, disposal system, decorative building, landscape device or object, or other improvements, shall be commenced, erected, placed or maintained upon any Lot, nor shall any addition, change or alteration thereon or thereof be made, unless and until the plans, specifications and location of the same shall have been submitted to, and approved in writing by, the Association. All plans and specifications shall be evaluated as to harmony of external design and location in relation to surrounding structures and topography and as to conformance with the restrictions herein and applicable Architectural Planning Criteria of the Association as the same may from time to time be adopted or amended. Architectural Planning Criteria in effect from time to time shall serve only as a guide to development of Lots and are not intended to limit the power or authority of the ARB and the Association to control such development, and failure of the Association to promulgate a criteria or criteria governing and applying to any specific matter or thing shall not limit the ARB's power or authority to consider and to approve, disapprove or govern that specific matter or thing.

Section 2. Architectural Review Board. The architectural review and control functions of the Association shall be administered and performed by the Architectural Review Board (the "ARB"), which shall consist of five (5) members, all of whom need not be members of the Association. Whenever approval is required, or any involvement of an ARB is required

pursuant to this Declaration, plans are required to be submitted. Members of the ARB shall be appointed by, and shall serve at the pleasure of, the Board. A majority of an ARB shall constitute a quorum to transact business at any meeting of the ARB, and the action of a majority present at a meeting at which a quorum is present shall constitute the action of the ARB. Any vacancy occurring on an ARB, because of death, resignation, or other termination of service of any member thereof, shall be filled by the Board. Members of a Board may serve on the ARB.

Section 3 Powers and Duties of the ARBs. The ARB shall have the following powers and duties:

A. To recommend, from time to time, to the Board any Architectural Planning Criteria, modifications of and/or amendments to same. Any Architectural Planning Criteria or modification or amendment to same shall be consistent with the provisions of this Declaration, and shall not be effective until adopted by a majority of the members of the Board at a meeting duly called and noticed and at which a quorum is present and voting. Notice of any Architectural Planning Criteria or modification or amendment to same, including a verbatim copy of same, shall be delivered after adoption thereof to each Member; provided, that the delivery to each Member of notice and a copy of any modification or amendment to Architectural Planning Criteria shall not constitute a condition precedent to the effectiveness or validity of same.

B. To require submission to the ARB of two (2) complete sets of all plans and specifications for any improvement or structure of any kind, including without limitation, any building, fence, wall, swimming pool, tennis court, screen enclosure, sewer, drain, disposal system, decorative building, landscape device or object, or other improvement the construction or placement of which is proposed upon any Lot. The ARB may also require submission of samples of building materials proposed for use on any Lot, and may require such additional

information as reasonably may be necessary for the ARB to completely evaluate the proposed structure or improvement in accordance with this Declaration and the Architectural Planning Criteria.

C. To approve or disapprove any improvement or structure of any kind, including without limitation, any building, fence, wall, swimming pool, tennis court, screen enclosure, sewer, drain, disposal system, decorative building, landscape device or object, or other improvement or change or modification thereto, the construction, erection, performance or placement of which is proposed upon any Lot and to approve or disapprove any exterior additions, changes, modifications or alterations therein or thereon. All decisions of the ARB shall be submitted in writing to the Board, and evidence thereof may be made by a certificate in recordable form, executed under seal by the President or any Vice President of the Association. Any party aggrieved by a decision of the ARB shall have the right to make a written request to the Board within thirty (30) days of such decision, for a review thereof. The determination of the Board upon reviewing any such decision shall in all events be dispositive.

D. To adopt a schedule of reasonable fees for processing requests for ARB approval of proposed improvements. Such fees, if any, shall be payable to the Association, in cash, at any time that plans and specifications are submitted to the ARB.

ARTICLE VIII

RESTRICTIONS

Section 1. Residential Use. The Property subject to these Covenants and Restrictions may be used for residential living, for accessory uses as defined by the Code of Ordinances of the City of Boca Raton and for no other purposes. No business or commercial

building may be erected on any Lot and no business may be conducted on any part thereof. No building or other improvement shall be erected upon any Lot without prior ARB approval thereof as elsewhere herein provided. No Lot shall be divided, subdivided or reduced in size unless each divided or subdivided portion thereof is consolidated with one or more contiguous Lots under one ownership to form one or more larger Lots. In the event of the division or subdivision of any Lot(s) as aforesaid, the obligation for Association expenses attributable to the divided or subdivided Lot(s) shall be and become proportionately attributable and chargeable to the contiguous Lot(s) and the Owner(s) thereof, to and with which all or portions of the divided or subdivided Lot(s) become consolidated. In the event that one or more Lots are developed as a Unit, the provisions of these Restrictions shall apply thereto as a single lot. No dwelling or other structure or improvement shall be erected, altered, placed or permitted to remain on any site not including at least one (1) full platted Lot according to the recorded Plat of Boca Tierra or the plat of any portion of the Property.

Section 2. Building Type. No building shall be erected, altered, placed or permitted to remain on any Lot other than one detached single-family dwelling containing not less than One Thousand Five Hundred (1,500) square feet of livable enclosed floor area (exclusive of open or screen or roofed porches, terraces, patios, as well as garages and carports), not to exceed two stories and thirty-live (35) feet in height., and having a private and enclosed garage (or carport, if approved) for not less than two (2) cars. Unless approved by the ARB as to use, location and architectural design, no garage, tool or storage room may be constructed separate and apart from the residential dwelling, nor can any such structure(s) be constructed prior to construction of the main residential dwelling.

Section 3. Layout, Filling and Grading. No foundation for a building shall be poured, nor shall construction commence in any manner or respect, until the layout for the building is approved by the ARB. It is the purpose of this approval to assure that no trees are unnecessarily disturbed and that the home is placed on the Lot in its most advantageous position. Filling and grading shall comply with all requirements of the Code and Ordinances of the City of Boca Raton.

Section 4. Exterior Color Plan. The ARB shall have final approval of all exterior color plans and each Member must submit to the ARB a color plan showing the color of the roof, exterior walls, shutters, trims, etc. The ARB shall consider the extent to which the color plan is consistent with the homes in the surrounding areas and the extent to which the color plan conforms with the natural color scheme of and for the community.

Section 5. Roofs. Flat roofs shall not be permitted unless approved by the ARB. Areas where flat roofs may be permitted are Florida rooms, porches or patios. There shall be no flat roofs on the entire main body of a building, provided that the ARB shall have discretion to approve such roofs on part of the main body of a building, particularly if modern or contemporary in design. No built-up roofs shall be permitted except where flat roofs are permitted herein.

The composition of all pitched roofs shall be tile, cedar shake shingle, slate or concrete construction, or other composition approved by the ARB, except asphalt shingle.

The minimum pitch of each roof shall be four (4) to twelve (12).

Section 6. Garage. In addition to the requirements stated in Section 2 hereinabove, all garages shall have a minimum width of twenty (20) feet for a two-car garage, thirty (30) feet

for a three-car garage, or forty (40) feet for a four-car garage, measured from the inside walls of the garage. All garages must have either a single overhead door with a minimum door width of sixteen (16) feet for a two-car garage, or two (2) sixteen (16) foot doors for a four car garage, or two (2), three (3), or four (4), individual overhead doors, each a minimum of eight (8) feet in width, and a service door. No carports will be permitted unless approved by the ARB.

Section 7. Driveway Construction. All dwellings shall have a paved driveway of stable and permanent construction, with a minimum width at the entrance to the garage at least two (2) feet wider than same and designed to provide easy access thereto. Unless prior approval is obtained from the ARB, all driveways must be constructed with concrete or other impervious material, except asphalt. Where curbs are required to be broken for driveway entrances, the curb shall be repaired at the Lot Owner's expense in a neat and orderly fashion acceptable to the ARB.

Section 8. Dwelling Quality. The ARB shall have final approval of all exterior building materials. Eight-inch (or larger) exposed concrete block shall not be permitted on the exterior of any building or detached structure unless prior approval is obtained from the ARB. The ARB shall discourage the use of imitation materials for facades and encourage the use of materials such as brick, stone, wood and stucco, or a combination of the foregoing.

Section 9. Signs. No sign of any kind shall be displayed to the public view except for the following:

A. Owners shall not display or place any sign of any character, including "For Rent" or "For Sale" signs, except the following signs to be approved by the ARB:

(1) "Open", not to exceed (3) square feet, which may be displayed when the Owner or his designated representative is in attendance.

(2) A name plate and an address plate in size and design approved by the ARB.

Section 10. Set-backs. Each single-family residence shall be set back twenty-five (25) feet from any street, twelve and 50/100 (12.50) feet from the side of each Lot (not facing a street), and twenty (20) feet from the rear of each Lot.

Section 11. Games and Play Structures. All basketball back boards and any other fixed games and/or play structures shall be located at the rear of the dwelling, or on the inside portion of corner Lots within the setback lines. No platform, dog house, playhouse or structure of a similar kind or nature shall be constructed on any part of a Lot located in front of the rear line of the residence constructed thereon, and any such structure must have prior approval of the ARB.

Section 12. Fences and Walls. The composition, location and height of any fence or wall to be constructed on any Lot shall be subject to the approval of the ARB. The ARB shall require the composition of any fence or wall to be consistent with the material used in the surrounding homes and other fences.

Section 13. Landscaping. A basic landscaping plan for each Lot must be submitted to and approved by the ARB. All Lots are required to have installed a standard underground sprinkler system which irrigates and maintains the entire Lot, including the portion of the Lot between the street pavement and the right-of-way line and/or the sidewalk. Full sodding shall be

required in all yards. It shall be the goal of the ARB in the approval of any landscape plan and layout plan to preserve all existing trees, if possible.

Section 14. Swimming Pools and Tennis Courts. Any swimming pool or tennis court to be constructed on any Lot shall be subject to the requirements of the ARB, which include, but are not limited to, the following:

A. Composition to be of material thoroughly tested and accepted by the industry for such construction;

B. No screening of the pool area may stand beyond a line extended and aligned with the side walls of the dwelling unless approved by the ARB;

C. Pool screening may not be visible from the street in front of the dwelling unless approved by the ARB;

D. Location and construction of tennis or badminton courts must be approved by ARB;

E. Any lighting of a pool or other recreation area shall be designed so as to buffer the surrounding residences from the lighting.

If one owner elects to purchase two (2) adjoining Lots and use one for recreation purposes, the Lot used for recreation purposes must be adequately screened by landscaping and/or walls or fences on both the front and side as required by the ARB. It shall be the intent of the ARB to screen any such use from the public view.

Section 15. Garbage and Trash Containers. No Lot shall be used or maintained as a dumping ground for rubbish, trash or other waste. All trash, garbage and other waste shall be

kept in a sanitary container and, except during pickup if required to be placed at the curb, all containers shall be underground or kept within an enclosure which the ARB shall require to be constructed with each dwelling, so that they shall not be visible from adjoining Lots or public areas.

Section 16. Temporary Structures. No structure of a temporary character, whether a trailer, tent, shack, garage, barn, or other such building, shall be placed on any Lot at any time; provided, however, a temporary storage or out-building for materials and supplies may be used in connection with and during the construction of a dwelling and removed immediately upon the completion of such construction.

Section 17. Removal of Trees. In reviewing building plans, the ARB shall take into account the natural landscaping such as trees, shrubs and palmettos, and encourage the Owner to incorporate them in his landscaping plan. No trees of two (2") inches in diameter at one (1') foot above nature grade shall be cut or removed without approval of the ARB, which approval may be given when such removal is necessary for the construction of a dwelling or other improvement.

Section 18. Window Air Conditioning Units. No window or wall air conditioning units shall be permitted without approval of the ARB and for other than auxiliary use.

Section 19. Mailboxes. No mailbox or paperbox or other receptacle of any kind for use in the delivery of mail or newspapers or magazines or similar material shall be erected on any Lot unless and until the size, location, design and type of material for said boxes or receptacles shall have been approved by the ARB. If and when the United States Postal Service or the newspaper or newspapers involved shall indicate a willingness to make delivery to wall

receptacles attached to dwelling, each Owner, at the request of the ARB, shall replace the boxes or receptacles previously employed for such purpose or purposes with wall receptacles attached to dwellings.

Section 20. Sight Distance at Intersection. Except as approved by the ARB, no fence, wall, hedge or shrub planting which obstructs sight-lines and elevations between two (2) and six (6) feet above the roadways shall be placed or permitted to remain on any corner Lot within the triangular area formed by the street property lines and a line connecting them at points twenty-five (25) feet from the intersection of the street lines, or in case of a round property corner, from the intersection of a street property line with the edge of a driveway alley pavement. No trees shall be permitted to remain within such distances of such intersections unless the foliage line is maintained at sufficient height to prevent obstruction of such sight-lines.

Section 21. Utility Connections. Building connections for all utilities, including but not limited to, water, electricity, telephone and television, shall be run underground from the proper connecting points to the building structure in such a manner to be acceptable to the governing utility authority.

Section 22. Docks, Boat Houses, Waterfront Construction, Boats and Shore Contours. No docks, seawall or bulkheads, moorings, pilings, boat houses or boat shelters of any kind or any construction shall be erected on or over waterways of and within the Property without the approval of the ARB. No motor powered boat of any kind, other than electric powered, shall be kept or used upon any lakes or waterways of and within the Property except that the Association may use a gas powered boat for the maintenance of same. The area, if any, between the rear lot line of any Lot and the water's edge of any lake or other water body within the Property shall be

landscaped, sodded and maintained by the Owner of said Lot as if said area were a portion of the Lot owned by said Owner.

Section 23. Boats and Motor Vehicles. No boats, recreational vehicles or other motor vehicles, except operative four-wheel passenger automobiles, shall be placed, parked or stored upon any Lot, nor shall any maintenance or repair be performed upon any boat or motor vehicle upon any Lot, except within a building which is totally isolated from public view. Any placing, parking or storing permitted by this Section shall be limited to the driveway and automobile storage area.

Section 24. Automobile Storage Areas. No automobile garage shall be permanently enclosed or converted to other use without the substitution of another enclosed automobile storage area upon the Lot.

Section 25. Artificial Vegetation. No artificial grass, plants or other artificial vegetation shall be placed or maintained upon the exterior portion of any Lot, unless approved by the ARB.

Section 26. Clothes Drying Area. No portion of any Lot shall be used as a drying or hanging area for laundry of any kind, it being the intention hereof that all such facilities shall be provided within the building constructed on a Lot.

Section 27. Animals. No animals, livestock or poultry of any kind shall be raised, bred, or kept on any Lot or the Common Area, except that dogs, cats and other household pets may be kept on Lots, so long as they are not kept, bred or maintained for commercial purposes. No pets shall be permitted to roam unattended away from the Lot on which it is kept.

Section 28. Antennae. No aerial or antenna shall be placed or erected upon any Lot, or affixed in any manner to the exterior of any building.

Section 29. Nuisances. Nothing shall be done or maintained on any Lot which may be or become an annoyance or nuisance to the neighborhood. In the event of a dispute or question as to what may be or become a nuisance, such dispute or question shall be submitted to the Board, which shall render a decision in writing, which decision shall be dispositive of such dispute or question.

Section 30. Miscellaneous. No weeds, underbrush or other unsightly growths shall be permitted to grow or remain on any Lot, and no refuse pile or unsightly objects shall be allowed to be placed or suffered to remain anywhere thereon; and in the event that any Owner shall fail or refuse to keep his Lot free of weeds, underbrush or refuse piles or other unsightly growths or objects, then the Association may enter upon said Lot and remove the same at the expense of the Owner, and such entry shall not be deemed a trespass.

Section 31. ARB Reports. The ARB's approval or disapproval as required in the Architectural Planning Criteria shall be delivered in writing to the Board and to the Owner submitting same. In the event the ARB fails to approve or disapprove plans and specifications within thirty (30) days of submission thereto, or in any event, if no suit to enjoin the construction has been commenced prior to the completion thereof, approval will not be required and the related criteria shall be deemed to have been fully complied with.

ARTICLE IX.

OBLIGATION TO CONSTRUCT SINGLE FAMILY RESIDENCE

Necessity for Construction. An Owner acknowledges that the purchase of an unimproved Lot is for the purpose of constructing a detached single family residence thereon.

ARTICLE X.

GENERAL PROVISIONS

Section 1. Duration and Remedies for Violation. The Covenants and Restrictions of this Declaration shall run with and bind the Property, and shall inure to the benefit of and be enforceable by the Association or the Owner of any Property subject to this Declaration, their respective legal representatives, heirs, successors and assigns, for a term of fifty (50) years from the date this Declaration is recorded, after which time said Covenants and Restrictions shall automatically be extended for successive periods of ten (10) years, unless an instrument signed by two-thirds (2/3) of the Members has been recorded, agreeing to change or terminate said Covenants and Restrictions in whole or in part. Violation or breach of any condition, covenant or restriction herein contained shall give the Developer and/or Association and/or Owner(s) in addition to all other remedies, the right to proceed at law or in equity to compel compliance with the term of said condition, covenant or restriction, and to prevent the violation or breach of any of them. The expense of such litigation shall be borne by the then Owner or Owners of the subject property, provided such proceeding results in a finding that such Owner was in violation of said Covenants or Restrictions. Expenses of litigation shall include reasonable attorney's fees incurred by the Association in seeking such enforcement.

Section 2. Notices. Any notice required to be sent to any Member or Owner under the provisions of this Declaration shall be deemed to have been properly sent when mailed to the last known address of the person who appears as Member or Owner on the records of the Association in seeking such enforcement.

Section 3. Severability. Invalidation of any one of these Covenants and Restrictions by judgment or court order shall in no way affect any other provisions which shall remain in full force and effect.

Section 4. Amendment. This Declaration may be amended at any time and from time to time upon the written agreement of two-thirds (2/3) of the voting interests of the Members. Upon obtaining such written agreement, the President of the Association and the Secretary thereof shall execute a certificate evidencing such agreement and recording the text thereof in the public records of Palm Beach County, Florida. Notwithstanding the requirement described above, an amendment to this Declaration may be adopted by the affirmative vote of two-thirds (2/3) of the total voting interests of the Association present in person or by proxy, at a meeting of the Members called for such purpose.

Section 5. Enforcement. The Covenants and Restrictions contained in this Declaration may be enforced by the Association, the Owners, and any Institutional First Mortgagee in any judicial proceeding seeking any remedy recognizable at law or in equity, including an action or suit seeking damages, injunction, specific performance, or any other form of relief, against any person, firm or entity violating or attempting to violate any covenant or restriction herein. The failure by any party to enforce any covenant or restriction contained herein shall in no event be deemed a waiver of such covenant or restriction or of the right of

such party to thereafter enforce such covenant or restriction. The prevailing party in any such litigation shall be entitled to reasonable attorney's fees and court costs at all trial and appellate levels.

Section 6. Captions. Articles and Sections captions inserted throughout this Declaration are intended only as a matter of convenience and for reference only and in no way shall such captions or headings define, limit or in any way affect any of the terms or provisions of this Declaration.

Section 7. Usage. Whenever used, the singular shall include the plural and the singular, and the use of any gender shall include all genders.

Section 8. Effective Date. This Declaration shall become effective upon its recordation in the Public Records of Palm Beach County, Florida.

Section 9. Plats Annexed. A graphic depiction of the Property to be governed by this Declaration and which contains the legal description of BOCA TIERRA 2nd SECTION is attached hereto as **Exhibit "D."** Said graphic depiction consists of the Plat of Boca Tierra 2nd Section and the Resubdivision of Part of Block 16, Boca Tierra 2nd Section.

[Signature Page Follows On Next Page]

IN WITNESS WHEREOF, the President and Secretary of the Boca Lake Homeowners Association, Inc., have executed this Declaration on the 3rd day of June, 2014.

WITNESSES:

[Signature]
Signature

Ralph Skarecki
Print Name of Witness

[Signature]
Signature

Sandra Tabares
Print Name of Witness

[Signature]
Signature

Ralph Skarecki
Print Name of Witness

[Signature]
Signature

Sandra Tabares
Print Name of Witness

Boca Lake Homeowners Association, Inc.

By: [Signature]
Ara Toroyan, as President

Attest By:

[Signature]
Michelle Balmer, as Secretary

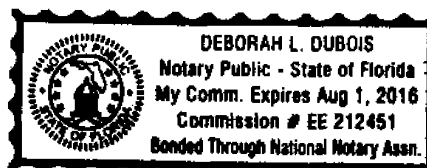
STATE OF FLORIDA)

COUNTY OF PALM BEACH)

)ss

BEFORE ME personally appeared Ara Toroyan, as President for and on behalf of BOCA LAKE HOMEOWNERS ASSOCIATION, INC., who is personally known to me to be the individual who executed the foregoing instrument and he acknowledged to and before me that he executed such instrument as President of the Association with due and regular corporate authority, and that said instrument is the free act and deed of the Association.

Witness my hand and official seal this 3rd day of June, 2014.



[Signature]
NOTARY PUBLIC
State of Florida
My Commission expires:

STATE OF FLORIDA)

)ss

COUNTY OF PALM BEACH)

BEFORE ME personally appeared Michelle Balmer, as Secretary for and on behalf of BOCA LAKE HOMEOWNERS ASSOCIATION, INC., who is personally known to me to be the individual who executed the foregoing instrument and acknowledged to and before me that he executed such instrument as Secretary of the Association with due and regular corporate authority, and that said instrument is the free act and deed of the Association.

Witness my hand and official seal this 3rd day of June, 2014.



Deborah L. Dubois
NOTARY PUBLIC
State of Florida
My Commission expires:

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ARTICLES OF INCORPORATION OF
BOCA LAKE HOMEOWNERS ASSOCIATION, INC.
a Florida Corporation Not for Profit

FILED
98 JAN 30 PM 2:39
SECRETARY OF STATE
TALLAHASSEE, FLORIDA

ARTICLE I.
NAME

The name of this corporation shall be BOCA LAKE HOMEOWNERS ASSOCIATION, INC., hereinafter sometimes referred to as the "Association".

ARTICLE II.
PURPOSES

The general nature, objects, and purposes of the Association are as follows:

- A. To promote the health, safety and social welfare of the Owners of Property within that area referred to as Boca Lake in the Declaration of Covenants and Restrictions for Boca Tierra, hereinafter the "Declaration", as recorded in Official Records Book 2995 at Pages 1613 et seq., Public Records of Palm Beach County, Florida and any amendments of record thereto.
- B. To maintain and/or repair landscaping in the general and/or Common areas, structures, and other improvements in Boca Lake, as such is defined in the Declaration, hereinafter referred to as the "Community", for which the obligation to maintain and repair has been delegated and accepted.
- C. To control the specifications, architecture, design, appearance, elevation and location of and landscaping around all buildings and improvements of any type, including, but not limited to, walls fences, solar water heating panels, swimming pools, antenna, sewers, drains, disposal systems, or other structures constructed, placed or permitted to remain in the Community, as well as any alteration, improvement, addition and/or change thereto.

D. To provide for private security, and such other services, the responsibility for which has been or may be accepted in writing by the Association, and the capital improvements and equipment related thereto, in the Community.

E. To provide, purchase, acquire, replace, improve, maintain and/or repair such buildings, structures, street lights and other structures, landscaping, paving and equipment, both real and personal, related to the health, safety and social welfare of the members of the Association, as the Board of Directors in its discretion determines necessary, appropriate, and/or convenient.

F. To perform all of the functions contemplated for the Association, and undertaken by the Board of Directors of the Association, in the Declaration.

G. To operate without profit for the sole and exclusive benefit of the Association's Members. No part of the Association's net earnings, if any, shall inure to the benefit of any Member of the Association or individual person, firm, or corporation.

ARTICLE III. GENERAL POWERS

The Association shall have the powers reasonably necessary to implement the purposes of the Association, including but not limited to, the following:

A. To hold funds solely and exclusively for the benefit of its members for purposes set forth in these Articles of Incorporation.

B. To promulgate and enforce rules, regulations, By-Laws, Covenants, Restrictions and agreements to effectuate the purposes for which the Association is organized.

C. To delegate power or powers where such is deemed in the interest of the Association.

D. To purchase, lease, hold, sell, mortgage or otherwise acquire or dispose of, real or personal property, except to the extent restricted hereby; to enter into, make, perform or carry out contracts of every kind with any person, firm, corporation, association or other entity; to do any and all acts necessary or expedient for carrying on any and all of the lawful activities and pursuing any and all of the lawful objects and purposes set forth in these Articles of Incorporation hereinafter, the "Articles".

E. To fix, collect and enforce assessments to be levied against Property to defray expenses and the cost of effectuating the objects and purposes of the Association, and to create reasonable reserves for such expenditures, and to authorize its Board of Directors, in its discretion, to enter into agreements with management companies and other organizations for the collection of such assessments.

F. To charge recipients for services rendered by the Association and any user for any use of the Association Property where such is deemed appropriate by the Board of Directors of the Association.

G. To operate and maintain the common property which may include but is not limited to surface water management systems.

H. To sue and be sued.

I. To charge recipients for services rendered by the Association and any user for any use of the Association property when such is deemed appropriate by the Board of Directors of the Association.

J. To pay taxes, utility, maintenance, and other charges, if any, on or against property owned or accepted by the Association.

K. To borrow money.

L. To contract for the management of the Association and to delegate to the party with whom such contract has been entered the powers and duties of the Association except those which require specific approval of the Board of Directors or Members.

M. To make, establish and enforce By-Laws and reasonable rules and regulations governing the use of common areas or any portions thereof, as well as the conduct of Members, their family, visitors, guests, and lessees, and to provide for the operation and formal administration of the Association.

N. To exercise all of the powers and privileges and to perform all of the duties and obligations of the Association and to enforce all the terms and conditions as set forth in the Declaration, applicable to the property and recorded or to be recorded in the Public Records of Palm Beach County, Florida, and as the same may be amended from time to time as therein provided, said Declaration, and all defined terms therein, being incorporated herein as if set forth at length.

O. In general, to have all powers conferred upon a corporation by the laws of the State of Florida, not in conflict with the terms of these Articles and the Declaration, necessary to implement the purposes of the Association.

ARTICLE IV.
MEMBERS

A. "Member", "Owner", "Lot", and any other defined terms used herein, and elsewhere in the Articles, are used with the definitions given those terms in the aforesaid Declaration for the Community.

B. The Members shall consist of the Lot Owners in Boca Lake, the Property comprising Boca Lake being described in Section C of this Article, and all such Lot Owners shall automatically become members of the Association upon the effective date of the creation of the Association and thereafter upon acquisition of record title in fee simple to such Lot.

C. The Community of Boca Lake consists of that certain real property shown upon the Plat of Boca Tierra Second section as recorded in Plat Book 38, Page 39 and as amended at Plat Book 50 at Page 60 of the Public records of Palm Beach County all of which is hereinafter sometimes referred to as the "Community".

D. Change in membership will be established by recording in the Public Records of Palm Beach County, Florida, a deed or other instrument establishing record fee title to such Lot and by delivering to the Association a certified copy of such instrument. In the event that a certified copy of said instrument is not delivered to the Association, said Owner shall become a Member, but shall not be entitled to the voting privileges established by these Articles until delivery of the certified copy of said instrument to the Association, at which time the voting privileges of such Owner and Member shall be restored.

E. The share of a Member in the funds and assets of the Association cannot be assigned, hypothecated, or transferred in any manner except as an appurtenance to that Member's Lot.

ARTICLE V. VOTING AND ASSESSMENTS

A. Subject to the restrictions and limitations hereinafter set forth, each Member shall be entitled to one (1) vote for each Lot in which such Member holds the interest required for membership. When one or more persons holds such interest or interests in any Lot, any such persons shall be Members, and the vote for such Lot shall be exercised as they among themselves determine, but in no event shall more than one vote be cast with respect to any Lot. Except where otherwise required under the provisions of these Articles, the Declaration, the By-Laws or by law, the affirmative vote of the Owners of a majority of Lots represented at any meeting of the Members duly called and at which a quorum is present, shall be binding upon the Members.

B. Voting of the Members shall be in person or by proxy appointed by an instrument in writing subscribed by the Member designated to vote as provided in paragraph A above, or by written absentee ballot signed by a Member as duly designated to vote.

C. The Association shall have the right to suspend any Member's right to vote for any period during which any assessment levied by the Association against such Member's lot shall remain unpaid for more than ten (10) days after the due date for the payment thereof.

D. The Association shall obtain funds with which to operate by assessment of its Members in accordance with the provisions of these Articles, the By-Laws, and the Declaration of the Association relating thereto.

E. The By-Laws of the Association shall provide for annual meetings of members, and may make provision for special meetings of members in addition to the annual meeting. The presence at any meeting of members, in person or by proxy or by written absentee ballot, of members entitled to cast a majority of the votes of the entire membership shall constitute a quorum for the transaction of business.

ARTICLE VI. BOARD OF DIRECTORS

A. The affairs of the Association shall be managed by a Board of Directors consisting of five (5) Directors. All directors, except the initial directors indicated below, shall be members of the Association. Elections shall be by plurality vote at a meeting at which a quorum of the membership of the Association is voting in person, by proxy, or by written absentee ballot. The number of director positions open for election shall be the same number as the number of regular terms of office of directors expiring at such time. The term of each director so elected at each annual election shall be for two (2) years and thereafter, until their successors are duly elected and qualified, or, until removed from office with or without cause by the affirmative vote of a majority of the total voting interests of the Association in person or by proxy at a meeting called for such purpose or by written agreement signed by a majority of the total voting interests of the Association.

B. If a director elected by the membership shall for any reason cease to be a director, the remaining directors may, in their discretion, elect a successor to fill the vacancy for the balance of the unexpired term.

C. A majority of the directors in office shall constitute a quorum for the transaction of business. The By-Laws shall provide for meetings of Directors, including annual meetings.

D. The names and addresses of the subscribers to these articles of incorporation and initial directors are:

Dennis North

Richard W. Tedeman

Dena Johnson

Joe Lucia

Howard Eglowstein

E. The directors indicated above shall serve until the first meeting of the members called to elect a board of directors.

ARTICLE VII. OFFICERS

The Association shall have a President, a Vice-President, a Secretary and a Treasurer, and such other officers and assistant officers and agents as the Board of Directors may from time to time deem desirable or consistent with the By-Laws of the Association which officers shall be subject to the direction of the Board. The officers of the Association, in accordance with any applicable provisions of the By-Laws, shall be elected by the Board of Directors at the annual meeting of the Board, or at an organizational meeting of the Board held within ten (10) days following the annual meeting, for terms of one (1) year and until qualified successors are duly elected and have taken office. The By-Laws may provide for the method of voting in the election, for the removal from office of the officers, for filling vacancies, and for the duties of the officers. If the office of President shall become vacant for any reason or if the President shall be unable or unavailable to act, the Vice-President shall automatically succeed to office or perform its duties and exercise its powers. If any office other than that of the President shall become vacant for any

reason, the Board of Directors may elect or appoint a Member of the Association to fill such vacancy. The same person may hold two offices, provided, however, that the offices of President and Vice-President shall not be held by the same person, nor shall the offices of President and Secretary be held by the same person. Until the first election of officers, the following shall serve as officers:

President:	Dennis North	Vice President:	Richard W. Tedeman
Treasurer:	Dennis North	Secretary:	Dena Johnson

ARTICLE VIII. CORPORATE EXISTENCE

The Association shall have perpetual existence.

ARTICLE IX. BY-LAWS

The Board of Directors shall make, alter or rescind the By-Laws of the Association consistent with these Articles. In the event of a conflict between the provisions of these Articles and the provisions of the By-Laws, the provisions of these Articles shall control.

ARTICLE X. AMENDMENT TO ARTICLES OF INCORPORATION

A. These Articles may be altered, amended or repealed by resolution of the Board of Directors, provided that (1) no amendment shall make any change in the qualifications for membership, nor the voting rights of the members without the written approval or affirmative vote of a majority of the Members of the Association and (2) these Articles shall not be amended in any manner which shall reduce, amend, affect, modify, or conflict with the terms, covenants,

provisions, rights and obligations set forth in the Declaration.

B. A copy of each amendment so adopted shall be filed within ten (10) days of adoption with the Secretary of State, pursuant to the provisions of applicable Florida Statutes and the same shall be recorded among the Public Records of Palm Beach County, Florida.

ARTICLE XI. INDEMNIFICATION OF OFFICERS AND DIRECTORS

A. The Association hereby indemnifies any current or former Director or Officer made a party or threatened to be made a party to any threatened, pending or completed action, suit or proceeding:

1. Whether civil, criminal, administrative, or investigative, other than one by or in the right of the Association to procure a judgment in its favor, brought to impose a liability or penalty on such person for an act alleged to have been committed by such person in the capacity of Director or Officer of the Association, or in the capacity of Director, Officer, employee, or agent of any other corporation, partnership, joint venture, trust or other enterprise which person served at the request of the Association, against judgments, fines, amounts paid in settlement and reasonable expenses, including attorney's fees, actually and necessarily incurred as a result of such action, suit or proceeding or any appeal therein, if such person acted in good faith in the reasonable belief that such action was in the best interests of the Association, and in criminal actions or proceedings, without reasonable ground for belief that such action was unlawful. The termination of any such action, suit or proceedings by judgment, order settlement, conviction or upon a plea of nolo contendere or its equivalent, shall not in itself create a presumption that any such Director or Officer did not act in good faith in the reasonable belief

that such action was in the best interests of the Association or that such Director or Officer has reasonable grounds for belief that such action was unlawful.

2. By or in the right of the Association to procure a judgment in its favor by reason of such Director or Officer being or having been a Director or Officer of the Association, or by reason of such Director or Officer being or having been a Director, Officer, employee or agent of any other corporation, partnership, joint venture, trust or other enterprise which such Director or Officer served at the request of the Association, against the reasonable expenses, including attorney's fees, actually and necessarily incurred by such Director or Officer in connection with the defense or settlement of such action, or in connection with an appeal therein, if such person acted in good faith in the reasonable belief that such action was in the best interests of the Association. Such person shall be entitled to indemnification in relation to matters to which such person has been adjudged to have been guilty of negligence or misconduct in the performance of his duty to the Association unless, and only to the extent that, the court, administrative agency, or investigative body before which such action, suit or proceeding is held shall determine upon application that, despite the adjudication of liability but in view of all circumstances of the case, such person is fairly and reasonably entitled to indemnification for such expenses which such tribunal shall deem proper.

B. The Board of Directors shall determine whether amounts for which a Director or Officer seeks indemnification were properly incurred and whether such Director or Officer acted in good faith and in a manner which such Director or Officer reasonably believed to be in the best interests of the Association, and whether, with respect to any criminal action or proceedings, such person had no reasonable ground for belief that such action was unlawful. Such determination

shall be made by the Board of Directors by a majority vote of a quorum consisting of Directors who were not parties to such action, suit or proceeding.

C. The foregoing rights of indemnification shall not be deemed to limit in any way the powers of the Association to indemnify under applicable law.

D. The Association shall have the power, but not the obligation, to purchase and maintain insurance on behalf of any person who is or was a director, officer, employee, agent or representative of the Association against any liability asserted against such person in any such capacity.

ARTICLE XII. TRANSACTIONS IN WHICH DIRECTORS OR OFFICERS ARE INTERESTED

A. No contract or transaction between the Association and one or more of its Directors or Officers, or between the Association and any other corporation, partnership, association, or other organization in which one or more of its Directors or Officers are Directors or Officers, or have a financial interest, shall be invalid, void or voidable solely for this reason, or solely because the Director or Officer is present at or participates in the meeting of the Board or committee thereof which authorized the contract or transaction. No Director or Officer of the Association shall incur liability by reason of the fact that such person is or may be interested in any such contract or transaction.

B. Interested Directors shall not be counted in determining the presence of a quorum at a meeting of the Board of Directors or of a committee which authorized the contract or transaction, nor shall an interested Director be entitled to vote on any contract or transaction in which he or she has an interest as defined herein.

ARTICLE XIII.
DISSOLUTION OF THE ASSOCIATION

A. Upon dissolution of the association, other than incident to a merger or consolidation, all of its assets remaining after provision for creditors and payment of all costs and expenses of such dissolution shall be distributed in the following manner:

1. By dedication to any applicable municipal or other governmental authority of any property determined by the Board of Directors of the Association to be appropriate for such dedication, and which the applicable authority is willing to accept and shall be used for purposes similar to those for which the corporation was formed. If same is not accepted, then to a similar non-profit corporation.

2. Remaining assets, if any, shall be distributed among the Members, subject to the limitations set forth below, as tenants in common, each Member's share of the assets to be determined in accordance with its voting rights.

B. The Association may be dissolved upon a resolution to that effect being recommended by three-fourths (3/4) of the Members of the Board of Directors, and, if such decree be necessary at the time of dissolution, after receipt of an appropriate decree as set forth in Florida Statutes Section 617.05 or statute of similar import, and approved by two-thirds (2/3) of the entire Membership of the Association.

ARTICLE XIV.
REGISTERED AGENT

The registered agent of this corporation is Kenneth Modica, whose address is c/o Triax Group, Inc., 4201 N Dixie Highway, Suite 5, Boca Raton, FL 33432, and he shall serve in such capacity until such time as another registered agent is appointed by resolution of the Board of Directors

and such appointment this accepted by such registered agent.

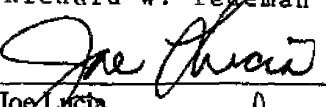
ARTICLES XV.
MISCELLANEOUS

Use of pronouns, whenever they appear in these Articles of Incorporation, shall read as either masculine, feminine or neuter and neither singular or plural, whenever the intent and facts permit such construction.

IN TESTIMONY of the intention and good faith to carry out the objects and purposes of the foregoing Articles of Incorporation of the Boca Lake Homeowners Association, Inc. the undersigned do hereby subscribe their names and signatures hereto at Boca Raton, Palm Beach County, Florida this 22 day of January, 1998.


Dennis North


Richard W. Tedeman


Joe Lucia


Dena Johnson


Howard Eglowstein

STATE OF FLORIDA
COUNTY OF PALM BEACH

Before me personally appeared

Dennis North
Richard W. Tedeman
Joe Lucia
Dena Johnson &
Howard Eglowstein

who are personally known to me or who provided Fla. Dr. License as
identification, who took oaths and executed the foregoing Articles of Incorporation freely and
voluntarily under authority vested in them by the Corporation.

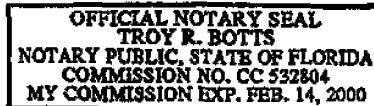
IN WITNESS WHEREOF, I have hereunto set my hand and official seal this 22 day of
January 1998.

Troy R. Botts
Notary Public

Print Name:

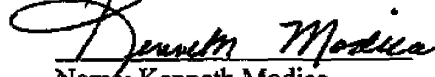
State of Florida

My Commission Expires:



ACCEPTANCE OF REGISTERED AGENT

Having been named to accept service of process for Boca Lake Homeowners Association, Inc. at the place designated in the articles of incorporation, the undersigned is familiar with and accepts the obligations of that position pursuant to F.S. 607.0501(3).


Name: Kenneth Modica
Triax Group, Inc.

Date: 1/27/98

FILED
98 JAN 30 PM 2:39
SECRETARY OF STATE
TALLAHASSEE, FLORIDA

**CERTIFICATE OF AMENDMENT
TO ARTICLES OF INCORPORATION OF BOCA LAKE HOMEOWNERS
ASSOCIATION, INC.**

THIS AMENDMENT is made this 11 day of June, 2002, by BOCA LAKE HOMEOWNERS ASSOCIATION, INC., (hereinafter "ASSOCIATION") pursuant to the ARTICLES OF INCORPORATION OF BOCA LAKE HOMEOWNERS ASSOCIATION, INC. (hereinafter "ARTICLES") which have been duly recorded in the Public Records of Palm Beach County, Florida, as follows:

OR Book 102004 Page 653

WHEREAS, at a duly called and noticed meeting of the Board of Directors of ASSOCIATION, a Florida not-for-profit corporation, held on December 11, 2001, the aforementioned Articles of Incorporation was amended pursuant to the provisions of said Articles with a unanimous vote of the Board of Directors.

WHEREAS, the Amendment(s) set forth herein are for the purpose of amending the ARTICLES.

WHEREAS, the Amendment(s) set forth do not materially effect a unit owners share of the common elements nor impair or prejudice the rights and priorities of lienors or mortgagees.

NOW, THEREFORE, the undersigned hereby certify that the Amendment(s) to the ARTICLES are a true and correct copy of the amendments as amended by the Board of Directors:

I. This Amendment hereby amends Article VI as follows:

(Deletions indicated by ~~strikeout~~, additions by underlining)

"A. The affairs of the Association shall be managed by a Board of Directors consisting of five (5) Directors. All directors, ~~except the initial directors indicated below~~, shall be members of the Association. Elections shall be by plurality vote at a meeting at which a quorum of the membership of the Association is voting in person, by proxy, or by written absentee ballot. The number of director positions open for election shall be the same number as the number of regular terms of office of directors expiring at such time. The term of each director so elected at each annual election shall be effective with the election of the Board of Directors on November 13, 2001. Two (2) members shall serve for a period of for two (2) years and three (3) members shall serve for a period of one (1) year. At each subsequent Annual Membership Meeting an election will be held to fill the positions whose terms expire at that time. These terms will be for a period of two (2) years and thereafter, until their successors are duly elected and qualified, or, until removed from office with or without cause by the affirmative vote of a majority of the total voting interests of the Association in person or by proxy at a meeting called for such purpose of by written agreement signed by a majority of the total

Certificate of Amendment, 1 of 2

voting interests of the Association, or by a majority of the Board of Directors, at a duly called meeting, based upon said Director having missed two (2) consecutive board meetings."

II. Except as amended and modified herein, all other terms and conditions of Article VI and all other sections of the ARTICLES OF INCORPORATION shall remain unchanged and in full force and effect according to their terms.

III. This Amendment has been proposed and adopted by unanimous vote of the Board of Directors.

IN WITNESS WHEREOF, the Articles has caused this Amendment to the ARTICLES OF INCORPORATION OF BOCA LAKE HOMEOWNERS ASSOCIATION, INC., to be executed by the duly authorized officer, this 11 day of June 2012

BOCA LAKE HOMEOWNERS ASSOCIATION, INC.

BY: David Noble
DAVID NOBLE Vice President

STATE OF FLORIDA
COUNTY OF Palm Beach

THE FOREGOING instrument was executed before me this 11 day of June 2012, by DAVID NOBLE, President of BOCA LAKE HOMEOWNERS ASSOCIATION, INC., who upon being duly sworn acknowledged to me that he/she signed the foregoing document and produced a driver's license as proof of identity.

WITNESS my hand and official seal at the County and State aforesaid this 11 day of June 2012

Nicole R. Swift
Notary Public
My commission expires:



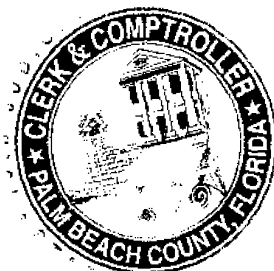
Nicole R. Swift
MY COMMISSION # 00754811 EXPIRES
November 7, 2012
BONDED THROUGH FARM INSURANCE, INC.

This Instrument Prepared by and Return to:
Leigh C. Katzman, Esq.
Katzman & Korr, P.A.
Inventory Financial Center
5581 W. Oakland Park Boulevard
Second Floor
Lauderhill, Florida 33313
(954) 486-7774

Articles of Incorporation Recorded in Official Records
Book 10204, Page 653 of the Public
Records of Palm Beach County, Florida.

H:\Xminda\Hm\CL\121212\Boca Lake Homeowners Association, Inc\Other\Amendment - Articles of Incorporation\121212Certificate of Amendment.spd

Certificate of Amendment, 2 of 2



I hereby certify that the foregoing is a true copy
of the record in my office this day, Mar 21, 2014.
Sharon R. Bock, Clerk Circuit Court, Palm Beach County, Florida
BY Sharon R. Bock Deputy Clerk

BY-LAWS OF
BOCA LAKE HOMEOWNERS ASSOCIATION, INC.

ARTICLE I.
DEFINITIONS

1. All terms used herein which are defined in the Declaration of Covenants and Restrictions for Boca Tierra and Boca Lake shall be used herein with the same meaning as defined in said Declaration.
2. "Association" shall mean and refer to BOCA LAKE HOMEOWNERS ASSOCIATION, INC.; a Florida corporation not-for-profit.
3. "Lot" shall mean and refer to any plot of land shown upon the following Plat of Boca Tierra Second section as indicated in Plat Book 38, Page 39 and as amended in Plat Book 50 at Page 60 of the Public records of Palm Beach County all of which is hereinafter sometimes referred to as the "Community".
4. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot, but excluding those having such interest merely as security for the performance of an obligation.
5. "Member" shall mean and refer to those persons entitled to Membership as provided in the Articles of Incorporation and the Declaration and "Membership" shall mean all of the Members.
6. "Declaration" shall mean and refer to the Declaration of Covenants and Restrictions as the same are recorded in the Public Records of Palm Beach County, Florida, in Official Records Book 2995 at Pages 1613, et. seq. and any amendments of record thereto.

ARTICLE II.

LOCATION OF PRINCIPAL OFFICE

The principal office of the Association shall be located at such place as the Board of Directors, from time to time, may deem advisable.

ARTICLE III.

VOTING RIGHTS AND ASSESSMENTS

1. ~~Membership:~~ Every person or entity who is a record fee simple owner of a Lot shall be a Member of the Association, provided that any such person or entity who holds such interest only as a security for the performance of an obligation shall not be a Member. Membership shall be appurtenant to, and may not be separated from, ownership of any Lot which is subject to assessment.

2. Suspension of Voting Rights:

A. Assessments not paid when due shall bear interest from the date when due until paid at the rate set forth in the Declaration for the Association, and shall result in the suspension of voting privileges if any such assessment shall remain unpaid for more than ten (10) days after the due date for the payment thereof. Upon payment of such assessments, voting privileges shall be automatically restored.

B. Non-compliance with the Declaration and Rules and Regulations promulgated and adopted by the Board of Directors regarding the use of the property subject to the Declaration and the conduct of the members, their families, guests, invitees, and tenants shall result in suspension of voting privileges during any period of such non-compliance.

ARTICLE IV.

BOARD OF DIRECTORS

1. Quorum: A majority of the Board of Directors shall constitute a quorum to transact business at any meeting of the Board, and the action of the majority present at a meeting at which a quorum is present shall constitute the action of the Board of Directors, unless otherwise provided in these By-Laws, the Articles of Incorporation, or the Declaration.
2. Vacancy: Any vacancy occurring on the Board of Directors because of death, resignation or other termination of services of any Director, shall be filled by the Board of Directors. A Director appointed to fill a vacancy shall be appointed for the unexpired term of his predecessor in office and until his successor shall have been elected and qualified.
3. Removal: Any director may be removed from office at any time with or without cause by a majority vote of the Association's Membership.
4. Regular Meetings: Regular meetings of the Board of Directors may be held at any public place or places on such days and at such hours as the Board of Directors may, by resolution, designate. No notice shall be required to be given of any regular meeting of the Board of Directors
5. Annual Meeting: The annual meeting of the Board of Directors shall be held immediately following the annual meeting of the Membership in accordance with Article V, paragraph 6, of these By-Laws.
6. Special Meetings: Special meetings of the Board of Directors may be called at any time by the President or by any two (2) members of the Board. Notice of each special meeting of the Board of Directors, stating the time, place and purpose or purposes thereof, shall be given by

or on behalf of the Secretary, President, or Vice-President, or by or on behalf of any two (2) members of the Board to each member of the Board not less than three (3) days by mail or one (1) day by telephone or telegram. If notice is by mail, notice shall be deemed given on the date such notice is deposited in the mailbox with postage thereon prepaid. Special meetings of the Board may also be held at any place and time without notice by unanimous written waiver of notice signed by all the directors. The Board of Directors may act by unanimous written consent in lieu of a meeting.

7. Waiver and Consent: The transaction of any business at any meeting of the Board of Directors however called and noticed, or wherever held, shall be as valid as though made at a meeting duly held after regular call and notice, if a quorum is present. Attendance at a meeting by a Director shall be deemed a waiver by such Director of notice of the time, date and place thereof, unless such Director specifically objects to lack of proper notice at the time the meeting is called to order. Further, if a Director, not present at such meeting, fails to object to the fact that he or she did not receive notice of the meeting, within five (5) business days after having knowledge that such meeting took place, then, in that event, such Director shall be deemed to have waived notice of the meeting and shall be deemed to have consented to the business transacted thereat.

8. Telephone Participation: Members of the Board of Directors or of any committee of the Board of Directors may participate in and act at a meeting of such Board or committee through the use of a conference telephone or other communications equipment by means of which all persons participating in the meeting can hear and speak with each other. Participation in such a meeting shall constitute attendance and presence in person at the meeting of the person or persons so participating.

9. Minutes: Minutes of all meetings of the Board of Directors shall be kept in a businesslike manner and shall be available for inspection by Members at all reasonable times. The Association shall retain the minutes of the annual, regular and special meetings of the Board of Directors for a period of not less than seven (7) years or for such period of time as required by law, whichever is longer.

ARTICLE V.

ELECTION OF DIRECTORS

1. Election: The Directors of the Association shall be elected at the Annual Meeting of the Members as specified in the Articles of Incorporation.
2. Nominations: Nominations for the election of Board members shall be made by a Nominating Committee appointed by the Board. Within thirty (30) days before such Annual Meeting date, the Nominating Committee shall notify the Secretary of the names of the candidates nominated for election to the Board of Directors. The Secretary shall, within seven (7) days after receiving such notification from the Nominating Committee, prepare and mail ballots to the Members.
3. The Nominating Committee shall make as many nominations for election to the Board of Directors as it shall in its discretion determine. In addition to nominations made by the Nominating Committee, petitions for nominees shall be accepted if signed by fifteen (15) Members. Such petitions shall be delivered to the Secretary thirty (30) days before the date set for the Annual Meeting. Further, nominations from the floor at the Annual Meeting, shall be accepted.
4. Voting: All elections to the Board of Directors shall be made on written ballots

which shall (a) describe the vacancies to be filled, and (b) set forth the names of those nominated for each vacancy by the Nominating Committee or by petition for such vacancy. Upon receipt of such ballots, the Members may, in respect to each vacancy, cast as many votes for the persons nominated as they are entitled to exercise under the provisions of the Articles of Incorporation and these By-Laws. Voting shall be in person, by written absentee ballot, or by proxy appointed by an instrument in writing subscribed by the Member designated to vote.

The completed ballots shall be returned to the Secretary at the address of the Association, or at such other address as designated upon each ballot. Upon receipt of each ballot, the Secretary shall immediately place it in a secure place until the date of the Annual Meeting of the Association. At the Annual Meeting, the ballots shall be turned over to an election committee which shall consist of not less than two (2) individuals who need not be Members of the Association, appointed by the Board of Directors, or be counted by the Secretary if the Board has not appointed an election committee.

5. Commencement of Term: The members of the Board of Directors elected in accordance with the procedures set forth in this Article shall be deemed elected as of the date of the annual meeting of the Board of Directors.

6. Organizational Meeting: The first meeting of a newly elected Board of Directors, for the purpose of organization and election of officers, shall be held immediately after the annual meeting of Members, provided the majority of the members of the Board elected are present. Any action taken at such meeting shall be by affirmative vote of a majority of the entire Board. If the majority of the members of the Board elected shall not be present at that time, or if the directors shall fail to elect officers, the meeting of the Board to elect officers shall then be held

within thirty (30) days after the annual meeting of members upon at least three (3) days' notice in writing to each Member of the Board elected, stating the time, place, and objective of such meeting.

ARTICLE VI.

POWERS AND DUTIES OF THE BOARD OF DIRECTORS

The Board of Directors shall be responsible for the affairs of the Association and shall have all of the Powers and duties necessary for the administration of the Association's affairs and, as provided by law, may do all acts and things as are provided in the Declaration, Articles of Incorporation, or these By-Laws, which are directed to be done and exercised exclusively by the Association. In addition to the powers granted by these By-Laws or by any resolution of the Association that may hereafter be adopted, the Board of Directors shall have the power to and be responsible for the following, by way of explanation, but not limitation:

- A. Call meetings of the Members.
- B. Appoint and remove at pleasure all officers, agents and employees of the Association, prescribe their duties, fix their compensation, and require of them such security or fidelity bond as it may deem expedient. Nothing contained in these By-Laws shall be construed to prohibit the employment of any member, officer or Director of the Association in any capacity whatsoever.
- C. Establish, levy and assess, and collect the assessments necessary to operate the Association and carry on its activities, and to create such reserves for extraordinary expenditures as may be deemed appropriate by the Board of Directors.
- D. Adopt and publish rules and regulations governing the use of the Common

Area or any parcels thereof and the personal conduct of the Members, their families, and their guests, invitees and tenants thereon, including reasonable admission charges if deemed appropriate, and the supervision of such use.

E. Authorize and cause the Association to enter into contracts for the day-to-day operation of the Association and the discharge of its responsibilities and obligations.

F. Exercise for the Association all powers, duties and authority vested in or delegated to the Association except those reserved to Members in the Declaration or Articles of Incorporation of the Association.

G. Provide for the operation, care, upkeep, and maintenance of all areas which are the maintenance responsibility of the Association.

H. Prepare and adopt an annual budget in which there shall be established the contribution of each Member to the common expenses.

I. Collect the assessments, deposit the proceeds thereof in a bank depository which it shall approve, and use the proceeds to administer the Association.

J. Open bank accounts on behalf of the Association and designate the signatories required.

K. Enforce by legal means (including, but not limited to, the imposition of fines), the provisions of the Declaration, the Articles of Incorporation, these By-Laws, and the rules and regulations adopted by it, and bring any proceedings which may be instituted on behalf of the Association.

L. Obtain and carry insurance against casualties and liabilities, as well as directors' and officers' liability insurance and fidelity bond coverage, all as provided in the

Declaration, and pay the premium cost thereof.

2. It shall be the duty of the Board of Directors:

- A. To cause to be kept a complete record of all its acts and corporate affairs.
- B. To supervise all officers, agents and employees of this Association and see that their duties are properly performed.
- C. With reference to assessments of the Association:
 - 1) To fix the amount of the Assessment against each Member for each assessment period at least thirty (30) days in advance of such date or period;
 - 2) To prepare a roster of the Members and assessments applicable thereto which shall be kept in the office of the Association and shall be opened to inspection by any Member; and
 - 3) To send written notice of each assessment to every Member subject thereto not later than fifteen (15) days after fixing the date of commencement thereof; and
 - 4) To issue or cause an appropriate officer to issue, upon demand by any person, a certificate setting forth whether any assessment has been paid. Such certificate shall be prima facie evidence of any assessment therein stated to have been paid.

D. With reference to fines levied by the Board, the Board shall not impose a fine (a late charge shall not constitute a fine) unless and until the following procedure is followed:

- 1) Written demand to cease and desist from an alleged violation shall be served upon the alleged violator specifying:
 - (a) the alleged violation;
 - (b) the action required to abate the violation and

(c) a time period, not less than ten (10) days, during which the violation may be abated without further sanction, if such violation is a continuing one, or a statement that any further violation of the same rule may result in the imposition of a fine, if the violation is not continuing. The Board or its designee may demand immediate abatement in such circumstances which, in the Board's determination, pose a danger to safety or property.

2) If the violation continues past the period allowed in the demand for abatement without penalty, or if the same rule is subsequently violated, the Board may, upon notice, impose a fine. The notice shall state:

- (a) the alleged violation;
- (b) that the alleged violator may, within ten (10) days from the date of the notice, request a hearing regarding the fine;
- (c) that any statements, evidence, and witnesses may be produced by the alleged violator at the hearing; and
- (d) that all rights to have the fine considered are waived if a hearing is not requested within ten (10) days of the date of the notice.

3) If a hearing is requested, it shall be held before the Board in executive session, and the Member shall be given a reasonable opportunity to be heard. The minutes of the meeting shall contain a written statement of the results of the hearing.

4) In the event the Board shall impose a fine against the Member, the amount of the fine shall be determined based upon the nature of the violation and shall be imposed on a non-discriminatory basis. Fines shall be treated as an assessment otherwise due to the Association, shall be paid no later than thirty (30) days after notice of the imposition or

assessment thereof, and shall be collected pursuant to the provisions of Article V of the Declaration. The imposition of fines pursuant hereto shall not be construed to be an exclusive right or remedy; and the right to impose such fines shall exist in addition to all other rights and remedies to which the Association may otherwise legally be entitled.

ARTICLE VII.

MEETINGS OF MEMBERS

1. Regular Meetings: The first Annual Meeting of the Association shall be held within two months of the recording of these bylaws in the public records of Palm Beach County, Florida. In subsequent years the Annual Meeting shall be held at a date determined by the Board of Directors at a time and place determined by the Board of Directors. The Annual Meetings of the members shall be held on a date determined in the discretion of the Board of Directors, but which shall be, at a minimum, in excess of eleven (11) months after the last annual meeting and no later than 14 months after the last annual meeting.

2. Special Meetings: Special meetings of the Members for any purpose may be called at any time by the President or the Vice-President. In addition, a special meeting of the Members shall be called as directed by resolution of the Board of Directors or upon the written request of the Members who have the right to vote one fourth (1/4) of the votes of the Membership.

3. Notice of Meetings: Notice may be given to a Member either personally, or by sending a copy of the notice through the mail, postage thereon fully paid, to his address appearing on the records of the Association. Each Member shall register his address with the Secretary, and notice of meetings shall be mailed or hand-delivered to him at such address. Notice of any meeting, regular or special, shall be mailed or personally delivered at least ten (10) days but not

more than thirty (30) days in advance of the meeting and shall set forth the general nature of the business to be transacted. Proof of notice of a meeting shall be given by written statement or verbally at said meeting by the person giving the notice. The notice shall state the time and place of such meeting and the object for which the meeting is called.

Waiver of Notice: Waiver of notice of a meeting of the Members shall be deemed the equivalent of proper notice. Any Member may, in writing, waive notice of any meeting of the Members, either before or after such meeting. Attendance at a meeting by a Member, whether in person, by proxy, or by absentee ballot, shall be deemed a waiver by such Member of notice of the time, date and place thereof, unless such Member specifically objects to lack of proper notice at the time the meeting is called to order.

5. Quorum: The presence at any meeting of Members entitled to cast a majority of the votes of the entire Membership shall constitute a quorum for any action governed by these By-Laws. If a quorum is present, the vote of a majority of the Members who are present or represented at the meeting and entitled to vote on the subject matter, shall be the act of the Membership. However, if the subject matter is one which by express provisions of the Articles of Incorporation or the Declaration requires a vote other than such majority vote, then such express provisions of the Articles of Incorporation or the Declaration requires a vote other than such majority vote, then such express provision shall govern and control the required vote on the decision of such subject matter. Absentee ballots received by the Secretary by the time of the meeting and Members present in person or by a duly authorized proxy shall be used in determining a quorum for any meeting.

6. Adjournment: If at any meeting of the Membership there shall be less than a

quorum present, the majority of those present may adjourn the meeting from time to time until a quorum is present. Any business which might have been transacted at a meeting when originally called may be transacted at any adjournment thereof. In the case of the adjournment of a meeting, no notice to the Members of such adjournment shall be required other than announcement at the meeting of the time and place of the adjourned meeting.

Proxies: Voting rights of Members shall be as stated in the Articles of Incorporation. Such votes may be cast in person, by proxy, or by written absentee ballot. "Proxy" is defined to mean an instrument containing the appointment of a person by a Member to vote for him and in his place and stead. Proxies shall be in writing and shall be valid only for the particular meeting designated therein and any adjournment thereof if so stated. A proxy must be filed with the Secretary before the appointed time of the meeting or at the particular meeting in order to be effective. Any proxy may be revoked prior to the time a vote is cast pursuant to such proxy. No one person shall be permitted to hold more than five (5) proxies.

8. **Order of Business:** The order of business at all annual meetings shall be as follows:

- A. Election of chairman of Meeting;
- B. Roll Call;
- C. Proof of Notice of Meeting;
- D. Adoption of Minutes of Previous Meeting;
- E. Reports of Officers;
- F. Reports of Committees;
- G. Election of Directors;
- H. Unfinished Business;

I. New Business; and

J. Adjournment.

The order of business of all special meetings shall be as determined by the President of the Association.

Rules of Order: Except as may be otherwise provided herein, Roberts Rules of Order (latest edition) shall govern the conduct of all meetings of the Members of the Association when not in conflict with the Declaration, the Articles of Incorporation, these By-Laws, or the laws of the State of Florida.

10. **Minutes of Meetings:** Minutes of all annual and special meetings of the Membership shall be kept in a businesslike manner and shall be available for inspection by the Members at all reasonable times. The Association shall retain the minutes of such meetings for a period of not less than seven (7) years or for a period of time as required by law, whichever is longer.

ARTICLE VIII.

OFFICERS

1. The officers of the Association shall be a President, a Vice President, a Secretary and a Treasurer, and such other officers as may be determined by the Board, in accordance with the Articles of Incorporation, to be from time to time appropriate. All of the Officers of the Association shall be members of the Board of Directors except that the Secretary need not be a member of the Board of Directors, but shall be a Member of the Association.

2. The officers of the Association shall be elected by the Board of Directors at the

annual meeting of the Board of Directors, which shall be held immediately following the Annual Meeting of the Association. New offices may be created and filled at any meeting of the Board of Directors and such newly created offices shall be filled only by Members of the Association who need not be members of the Board of Directors. Each officer shall hold office until his successor shall have been duly elected and qualified.

3. A vacancy in any office because of death, resignation, or other termination of service, may be filled by the Board of Directors for the unexpired portion of the term.

4. All officers shall hold office at the pleasure of the Board of Directors.

5. The President shall preside at all meetings of the Board of Directors, shall see that orders and resolutions of the Board of Directors are carried out and sign all notes, leases, contracts, mortgages, deeds and all other written instruments.

6. The Vice President or the Vice President so designated by the Board of Directors if there is more than one (1) Vice President, shall perform all the duties of the President in the President's absence. The Vice President(s) shall perform such other acts and duties as may be assigned by the Board of Directors.

7. The Secretary of the Association shall be the Secretary of the Board of Directors, and shall record the votes and keep the minutes of all proceedings in a book to be kept for the purpose. The Secretary shall keep the records of the Association, and shall record in the book kept for that purpose all the names of the Members of the Association, together with their addresses as registered by such Member.

8. The Treasurer shall receive and deposit in appropriate bank accounts all monies of the Association and shall disburse such funds as directed by the resolution of the Board of

Directors, provided, however, that a resolution of the Board of Directors shall not be necessary for disbursement made in the ordinary course of business conducted within the limits of a budget adopted by the Board. The Treasurer may, but need not, be a required signatory on checks and notices of the Association.

The Treasurer, or the Treasurer's appointed agent, shall keep proper books of account and cause an annual accounting of the Association books to be made by a certified public accountant at the completion of each fiscal year. The level of accounting shall be selected by the Board and shall be either a compilation, review or audit. The Board can use as a guideline the recommended specifications of Section 718.111(14) F.S. which prescribes levels of accounting based upon the annual receipts of the Association, to wit:

<u>Annual Receipts in Excess of</u>	<u>Annual Receipts Less Than</u>	<u>Level of Accounting</u>
\$100,000.00	\$200,000.00	Compilation
\$200,000.00	\$400,000.00	Review
\$400,000.00		Audit

If an annual audit of the records is desired by the Board, it may either retain a certified public accountant or appoint a committee composed of three (3) Members of the Association, who are not members of the Board of Directors, to effect such audit.

The Treasurer or the Treasurer's appointed agent shall prepare an annual budget and an annual balance sheet statement. The budget and balance sheet statement shall be open for inspection upon reasonable request by a Member.

10. The salaries, if any, of the officers and assistant officers of the Association shall be

set by the Board of Directors.

ARTICLE IX.

COMMITTEES

1. The standing committees of the Association shall be:

The Nominating Committee

The Maintenance Committee

The Architectural Review Board (the "ARB")

Each committee shall consist of a chairman and two (2) or more members and shall include a member of the Board of Directors. The committees shall be appointed by the Board of Directors within thirty (30) days after each annual meeting of the Board of Directors, to serve until succeeding committee members have been appointed. The Board of Directors may appoint such other committees as it deems advisable.

2. The Nominating Committee shall have the duties and functions described in the By-Laws.

3. The Maintenance Committee shall advise the Board of Directors on all matters pertaining to the maintenance, repair or improvement of the property in the Community, and shall perform or seek the performance of such other functions as the Board in its discretion determines.

4. The Architectural Review Board shall have the duties and functions described in the Declaration.

ARTICLE X.

BOOKS AND RECORDS

The books and records, including minutes and financial reports, of the Association shall.

during reasonable business hours, be available at the office of the Association for the inspection of any Member of the Association upon at least seven (7) days' prior written request given by such Member to the Association. All such books and records shall be retained by the Association for a period of not less than seven (7) years or for a period of time as required by law, whichever is longer.

ARTICLE XI.

CORPORATE SEAL

The Association shall have a seal in circular form having within its circumference the words: "BOCA LAKE HOMEOWNERS ASSOCIATION, INC., a Florida corporation not-for-profit, incorporated 1997."

ARTICLE XII.

FISCAL MATTERS

1. Fiscal Year: The fiscal year of the Association shall begin on the first day of January and end on the last day of December, provided, that the Board of Directors shall be authorized to change the fiscal year at such time and from time to time as the Board of Directors shall deem it advisable.

2. Depositories: The funds of the Association shall be deposited in one or more savings and loan associations or banks in Palm Beach County, Florida, under resolutions duly approved by the Board of Directors, and shall be withdrawn only over the signature of any two members of the Board of Directors.

3. Reports: The Board of Directors shall present at each annual meeting, a full and clear statement of the business and condition of the Association.

ARTICLE XIII.

AMENDMENT; CONFLICTS

1. Amendments: The Board of Directors shall have the power to amend these By-Laws and/or the Articles of Incorporation subject to restrictions contained in the Articles of Incorporation or these By-Laws.
2. There shall be no amendment to these By-Laws which could be construed as an impairment or elimination of the Association's obligation to maintain any easements and Common Areas of the Community.
3. A copy of these By-Laws and of any subsequent amendment thereof shall be recorded among the Public Records of Palm Beach County, Florida.
4. In case of any conflict between the Articles and these By-Laws, the Articles of Incorporation shall govern and control. In case of any conflict between the Declaration and these By-Laws, the Declaration shall govern and control.

ARTICLE XIV.

Use of pronouns, whenever they appear in these By-Laws, shall read as either masculine, feminine or neuter and either singular or plural, whenever the intent and facts permit such construction.

ORB 10204 Pg 707

DOROTHY H. WILKEN, CLERK PB COUNTY, FL

IN TESTIMONY of the intention and good faith to carry out the objects and purposes of

the foregoing By-Laws of the BOCA LAKE HOMEOWNERS ASSOCIATION, INC., the

undersigned do hereby subscribe their names and signatures hereto at Boca Raton, Palm Beach

County, Florida this 22 day of January, 1998

[Signature]
Dennis North

[Signature]
Richard W. Tedeman

[Signature]
Joe Lucia

[Signature]
Dena Johnson

[Signature]
Howard Eglowstein

STATE OF FLORIDA
COUNTY OF PALM BEACH

Before me personally appeared

Dennis North
Richard W. Tedeman
Joe Lucia
Dena Johnson &
Howard Eglowstein

who are personally known to me or who provided Fla Dr. License as
identification, who took oaths and executed the foregoing Bylaws freely and voluntarily under
authority vested in them by the Corporation.

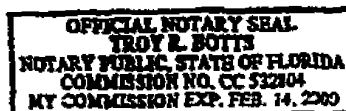
IN WITNESS WHEREOF, I have hereunto set my hand and official seal this 22 day of
January, 1998.

[Signature]
Notary Public

Print Name:

State of Florida

My Commission Expires:



Boca Lake Homeowners Association, Inc.
dba: Lakewood Oaks
Approved Adopted Rules September 8, 2015

- 1) Mailboxes are owned by the individual homeowner and may only be of the existing approved HOA style. Periodically the HOA may perform maintenance on them but the obligation for the mailbox is solely the homeowner's responsibility.
- 2) Garbage may be put out at 5pm the night before pick-up and the garbage containers must be brought in by 11:59PM the day of pickup. Garbage cans cannot be left in front of the house or the driveway. Reasonable efforts by the occupant must be made to obscure the containers from view at all times.
- 3) All Oak trees in the swale are the individual lot owner's responsibility and liability, periodically the Association may perform maintenance to insure aesthetic uniformity throughout the community. Homeowners who need to have additional trimming performed must submit and Architectural Review Board (ARB) form.
- 4) Yard debris may only be put curbside the day before Boca Raton sanitation pickup, it may either be piled up in front of your home or placed in a garbage bag.
- 5) Vehicles with commercial lettering, ladder racks and exterior fuel tanks may not be parked overnight in the community unless they are parked inside of a garage. Police vehicles are exempt from this rule.
- 6) It is the homeowner's responsibility to ensure that yard waste does not enter the lake including but not limited to palm/tree branches, coconuts, lawn/shrub clippings, fertilizers/pesticides. Homeowner's identified violating this rule will be billed for clean up or repair.
- 7) Trees on the perimeter in the Association's buffer and planting easement along St. Andrews and 37th street that are inside the hedge and outward towards the street are the Association's responsibility to maintain and may not be trimmed by any homeowners. Any homeowner that desires to trim any of these trees must first complete an ARB form and be approved prior to any work commencing.
- 8) All owners renting their homes must provide the Association with a signed copy of the rental agreement.

Boca Lake Homeowners Association, Inc.

dba: **Lakewood Oaks**

Approved Rules October 13, 2015

9. Hurricane shutters may close off window and door openings up to 3 days prior to an announcement of a Hurricane watch. Once the watch has been removed, or the storm has passed the area, the window and door openings must be free of hurricane shutters within seven days of the end of the event. It is recognized that some homeowners may not be in residence during the summer, hurricane season. Those owners must submit an ARB form requesting approval for their hurricane shutters to remain up for an extended period. This is also true for homeowners taking an extended vacation who wish to have their shutters up during their absence for enhanced security.
10. Dumpsters, port-o-lets and/or temporary storage containers are not allowed on driveways or in the front of a property without prior consent of the ARB. One (1) temporary dumpster placed in the driveway of a homeowner's property for home renovations is permitted for a reasonable period as approved by the ARB based on the nature of the work performed. All dumpsters must be maintained in safe and sanitary condition. No dumpster may block the sidewalk.
11. Each homeowner is responsible for ensuring that any storm drain that is in the swale of such homeowner's property is free from any debris including leaves. The debris must be removed from the area and not just pushed to the side.
12. The fish taken from the lake are catch and release only.

Contact Information:

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